

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 880

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLES; AMENDING SECTION 49-106, IDAHO CODE, TO REVISE
A DEFINITION AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMER-
GENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-106, Idaho Code, be, and the same is hereby
amended to read as follows:

49-106. DEFINITIONS -- E.

(1) (a) "Electric-assisted bicycle" means a bicycle equipped with fully
operable pedals and an electric motor of less than seven hundred fifty
(750) watts and that meets one (1) of the following requirements:

~~(a)~~ (i) "Class 1 electric-assisted bicycle" means an electric-
assisted bicycle equipped with a motor that provides assistance
only when the rider is pedaling and ceases when the rider stops
pedaling or when the bicycle reaches the speed of twenty (20) miles
per hour.

~~(b)~~ (ii) "Class 2 electric-assisted bicycle" means an elec-
tric-assisted bicycle equipped with a motor that may be used
exclusively to propel the bicycle and that is not capable of pro-
viding assistance when the bicycle reaches the speed of twenty
(20) miles per hour.

~~(c)~~ (iii) "Class 3 electric-assisted bicycle" means an elec-
tric-assisted bicycle equipped with a motor that provides as-
sistance only when the rider is pedaling and ceases when the
rider stops pedaling or when the bicycle reaches the speed of
twenty-eight (28) miles per hour.

(b) (i) "Electric-assisted bicycle" shall not include a vehicle,
which may have the general appearance of a bicycle, on which any
person may ride, that has two (2) tandem wheels, has an electric
motor, and is not an E-scooter or similar device, if it meets one
(1) or more of the following criteria:

1. It is equipped with an electric motor of seven hundred
fifty (750) watts or more;

2. It is equipped with an electric motor that does not cease
to provide assistance when the vehicle reaches speeds above
thirty (30) miles per hour; or

3. It is not equipped with operable pedals that can propel
the device.

(ii) Electric vehicles described in paragraph (b) (i) of this sub-
section shall not be included in any reference to an electric-as-
sisted bicycle within Idaho law, rules, or regulations and shall

1 be required to be licensed, registered, and insured in order to be
 2 driven on public highways.

3 (2) "Electric personal assistive mobility device" means a self-balanc-
 4 ing two (2) nontandem wheeled device designed to transport only one (1) per-
 5 son, with an electric propulsion system that limits the maximum speed of the
 6 device to fifteen (15) miles per hour or less.

7 (3) "Emergency vehicle." (See "Vehicle," section 49-123, Idaho Code)

8 (4) "Encumbrance." (See "Lien," section 49-113, Idaho Code)

9 (5) "EPA" means the environmental protection agency of the United
 10 States.

11 (6) "Essential parts" means all integral and body parts of a vehicle of
 12 a type required to be registered, the removal, alteration or substitution of
 13 which would tend to conceal the identity of the vehicle or substantially al-
 14 ter its appearance, model, type or mode of operation.

15 (7) "Established place of business" means a place occupied either con-
 16 tinuously or at regular periods by a dealer or manufacturer where his books
 17 and records are kept and a large share of his business is transacted.

18 (8) "Excessive" or "unusual noise" means any sound made by a passen-
 19 ger motor vehicle or a motorcycle at any time under any condition of grade,
 20 speed, acceleration or deceleration, which exceeds ninety-two (92) deci-
 21 bels, or any lower decibel level that is fixed by law or rules adopted by the
 22 board of health and welfare, on the "A" scale of a general radio company no.
 23 1551-B sound level meter, or equivalent, stationed at a distance of not less
 24 than twenty (20) feet to the side of a vehicle or motorcycle as the vehicle or
 25 motorcycle passes the soundmeter or is stationed not less than twenty (20)
 26 feet from a stationary motor or engine.

27 (9) "Excessive speed" means any speed of fifteen (15) miles per hour or
 28 more above the posted speed limit, and is only for purposes of determining
 29 disqualification of commercial driving privileges.

30 (10) "Executive head," as used in chapter 20, title 49, Idaho Code,
 31 means the governor of the state of Idaho.

32 (11) "Explosives" means any chemical compound or mechanical mixture
 33 that is commonly used or intended for the purpose of producing an explosion
 34 and which contains any oxidizing and combustive units or other ingredients
 35 in proportions, quantities or packing that an ignition by fire, by friction,
 36 by concussion, by percussion or by detonator of any part of the compound or
 37 mixture may cause a sudden generation of highly heated gases with which the
 38 resultant gaseous pressures are capable of producing destructive effects on
 39 contiguous objects or of destroying life or limb.

40 (12) "Extraordinary circumstances" means any situation where an emer-
 41 gency exists or public safety is endangered, or any situation in which a ve-
 42 hicle:

43 (a) Is blocking or impeding traffic; ~~or~~

44 (b) Is causing a hazard; ~~or~~

45 (c) Has the potential of impeding any emergency vehicle; ~~or~~

46 (d) Is impeding any snow removal or other road maintenance operation;
 47 ~~or~~

48 (e) Has been stolen but not yet reported as recovered; ~~or~~

49 (f) Is not registered, or displays a license plate registration tag
 50 which has been expired; ~~or~~

- 1 (g) Has been involved in an accident and remains on the highway; or
- 2 (h) The driver of which has been arrested.

3 SECTION 2. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.